



and technical safeguards that health care insurers and providers must follow to protect patient records.

In financial services, the Gramm-Leach-Bliley Act of 1999 stipulates the steps that banks, credit unions, and other financial institutions must follow to safeguard customer data. The act is enforced by the FTC. Other industries are also subject to specific privacy and data protection rules.

Direct marketing

Direct marketing agencies are subject to laws enforced by the above-mentioned agencies, but are also supposed to adhere to self-imposed codes of conduct adopted by the Direct Marketing Association. The DMA is a lobby group for the industry that promotes “responsible, data-driven marketing.” The DMA promulgates member policies on a number of issues, including privacy, the environment, e-commerce, and consumer protection.

E-commerce

For marketers that conduct campaigns through the internet and social media channels, the Interactive Advertising Bureau (IAB) publishes codes of conduct that members are expected to follow. For example, the IAB expects all members to be transparent about the data and personal information they collect from consumers on the web.

ORGANIZATIONS AND RESOURCES

Advertising

The Federal Trade Commission oversees truth-in-advertising laws and regulations and offers resources to advertisers and marketers to help keep them from running afoul of the rules. On its website, the FTC publishes advisory opinions on how changes to laws or court rulings may have an impact on future enforcement decisions.

<http://www.ftc.gov/policy/advisory-opinions>

The Bureau of Consumer Protection, an arm of the FTC, operates an online Business Center that advises businesses how to comply with Do Not Call, CAN-SPAM, and other rules. It also offers general guidelines on advertising and marketing basics, marketing to children, health claims, and “Made in the USA” claims.

<http://business.ftc.gov/advertising-and-marketing>

Data protection

Various federal agencies can provide information on rules, regulations, and methods concerning the protection of consumer data and privacy, depending on the industry.

The Department of Health & Human Services publishes an online FAQ for complying with HIPAA. It also posts guidelines for covered entities and their business partners and associates.

<http://www.hhs.gov>

For marketers and advertisers who work within the financial services industry, the SEC has a web page devoted to the topic of protecting consumers’ financial data and personally identifiable information (PII).

<http://www.sec.gov/about/privacy/secprivacyoffice.htm>

In Canada

Canada’s Competition Bureau maintains a website that provides in-depth information on the Consumer Packaging and Labelling Act, as well as on other relevant legislation.

<http://www.competitionbureau.gc.ca>